M/S East Coast Railways vs O.E.R.C. & Ors on 13 December, 2011

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Appeal No. 135 of 2011

Dated: 13th December, 2011

Present: Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. V.J. Talwar, Technical Member

M/s East Coast Railways .... Appellant (s
Versus
O.E.R.C. & Ors. ...Respondent (s)

Counsel for the Appellant (s): Ms. Geetanjali Mohan
Counsel for the Respondent(s): Mr. R.K. Mehta & Mr. Antaryami Upadhyay & Mr. David for R.1 & 2

ORDER

Admittedly, the issue raised in this Appeal is the same in other Appeal Nos. 57 of 2011 and batch, which were decided by this Tribunal by Judgment dated 02.09.2011, setting aside the impugned Order and directing the State Commission to re-determine the tariff of cross subsidy within the particular time frame specified. The fact that the said Judgment would apply to this Appeal also is not disputed by the parties.

It is now stated by the learned counsel for the parties that already public hearing has been held and the Appellant and the other parties have participated in the said public hearing. The State Commission will pass suitable Orders on the issue in this Appeal as directed by this Tribunal in the Judgment dated 02.09.2011.

With the above observation, the Appeal is disposed of.

(V.J. Talwar) (Justice M. KarpagaVinayagam)
Technical Member Chairperson

Ts/ss